

Maya Devi v. State of U.P. — pending Clause 6.5 bill-correction application directed to be decided

High Court of Judicature at Allahabad · Division Bench · 7 September 2022 · WRIT - C No. - 5378 of 2022 · **Writ disposed of; EE to decide pending Clause 6.5 application in one month.**

HEADNOTE

Without examining merits, the Allahabad High Court disposed of Maya Devi's writ by directing the Executive Engineer, Paschimanchal Vidyut Vitran Nigam Ltd to decide her pending Clause 6.5 bill-correction application within one month of presentation of a certified copy, after first examining whether the application was maintainable under the relevant laws.

FACTUAL SUMMARY

Maya Devi petitioned the Allahabad High Court in Writ-C No. 5378 of 2022 against the State of Uttar Pradesh and officers of Paschimanchal Vidyut Vitran Nigam Ltd. Counsel stated that, pursuant to this Court's order dated 23 November 2021, she had on 29 November 2021 applied to the Executive Engineer, PVVNL (respondent no. 4) for correction of her electricity bill under Clause 6.5 of the U.P. Electricity Supply Code, 2005, but no order had been passed. An earlier listing on 22 March 2022 had been adjourned when none appeared for the petitioner.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

pending 6.5 bill-correction application

HOLDING

Where a consumer's Clause 6.5 bill-correction application to the Executive Engineer remains undecided, the writ court may, without examining merits, dispose of the petition by directing the Executive Engineer to decide that application within a fixed time and, before doing so, to examine whether the application is maintainable under the relevant laws. ¶ 1

PRINCIPLE TAGS

6.5-pending-complaint-writ-remitted Writ disposed of by remitting the pending Clause 6.5 bill-correction application to the Executive Engineer, PVVNL, to be decided within one month, without a merits decision on the bill. ¶ 1

clause-6.5-pending-representation-to-be-decided The Executive Engineer was directed to decide the petitioner's 29.11.2021 Clause 6.5 application, on which no order had been passed. ¶ 1

clause-6.5-alternate-remedy-to-writ The Court declined to go into the merits and treated the pending Clause 6.5 representation as the forum for the billing dispute, including a maintainability check under the relevant laws. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE BILL-CORRECTION CLAIM

Court expressly declined to go into the merits. ¶ 1

NOT DECIDED — MAINTAINABILITY OF THE CLAUSE 6.5 APPLICATION

Left to the Executive Engineer to examine under the relevant laws before deciding. ¶ 1

